STANDARD OPERATING PROCEDURE			G-10300
SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 03/30/09	DATE REVISED **08/27/21**	DATE REVIEWED 02/02/25
	APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES CALEA 42.2.8		
SUBJECT USE OF INTERVIEW ROOMS	CROSS REFERENCE G-6300 AUTHORIZED RESTRAINTS NRS 29-4503,		

I. Purpose:

The purpose of this policy is to establish guidelines for use of the interview rooms, within the Sarpy County Sheriff's Office. This shall include searches of civilians, personnel, suspects, and witnesses prior to use of the interview rooms.

II. Policy:

The Sarpy County Sheriff's Office is responsible for the safety and security of the interviewees, personnel, and public within the Sheriff's Office. Therefore specific procedures shall be followed prior to and during the use of the non-secure interview rooms.

III. Definitions:

A. Interview Rooms: Non-secure rooms, located in the Sarpy County Sheriff's Office, used for questioning civilians, inmates, personnel, suspects, witnesses, etc.

B. Wand: A hand-held electronic device used for security purposes to detect weapons and other dangerous metal objects. Upon detection of a metal object, the hand-held electronic device shall alert the deputy through vibrations and/or an audible alarm.

C. Weapons: Weapons shall include, but shall not be limited to, firearms, knives, cutting instruments, chemical agents (i.e. Mace), stun guns, etc.

IV. Procedure:

A. Duty Weapon: The interviewing deputy shall determine whether or not to secure his or her weapon, prior to use of the interview rooms.

B. Security Procedures:

1. **Custodial suspects:** Custodial suspects shall always be searched and have their pockets emptied without exception prior to an interview/interrogation.

2. **Potential suspects:** Potential suspects may be searched at the discretion of the deputy prior to entering the room for security purposes (this search will be for weapons only). Deputies may also politely request that suspects empty their pockets on the table or leave their purse, backpack, etc. outside of the room.

3. **Searches of the opposite sex:** Searches of the opposite sex shall be conducted in accordance with policy (see P-4700 Arrest-Citations) and dependent on if the search is a frisk or custodial search.

4. **Use of Wand:** Two (2) Law Enforcement Officers, including at least one Sarpy County Deputy shall be present when utilizing the wand. If the audible or silent (vibration) alarm activates it shall be the deputy's responsibility to determine the cause of the activation. The determination shall be made by the least intrusive means necessary, beginning with a pat search.

   a) The deputy shall not question the individual regarding suspected items unless the individual has been provided his or her Miranda warnings.

   b) The deputy shall not attempt to retrieve any weapons or conduct a pat search without a second law enforcement officer present.

   c) If a legal weapon (e.g. knife) is discovered, the deputy shall secure the weapon until the interview is completed.

   d) If an illegal weapon is discovered, the deputy shall document the incident in an arrest report and confiscate the weapon.

   e) Illegal weapons confiscated shall be logged into evidence.

C. Interview Rooms:

a) Interview Rooms will be supplied with an adequate number of tables and chairs for their size.

b) The number of deputies occupying the room during an interview shall be determined on a case-by-case basis.

c) Deputies will not interrupt an interview in progress unless they have been requested to relay information.

D. Use of Audio/Video Recording Equipment:

1. All interview rooms shall be equipped with audio/video recording equipment.

2. All interrogations regarding crimes resulting in death or felonies involving sexual assault, kidnapping, child abuse, or offenses being investigated as part of the same course of conduct made during a custodial interrogation of those crimes shall be recorded (NRS 29-4503).

3. All felony property crime interrogations shall be recorded.

E. Access to Water, Rest Rooms, and Comfort Breaks:

1. Restrooms and a drinking fountain for the interview rooms area available within the Sheriff's Office.

2. Suspects shall be provided access to the restroom, drinking fountain, and other needs as necessary.

3. Comfort breaks are permissible when practical. Deputies will maintain observation of the suspect during this time, as necessary, to ensure the safety of the suspect and facility employees.

F. Interviews of Civilians: The deputy conducting the interview ***may*** utilize the wand on victims, suspects and/or witnesses to be interviewed. This shall be at the discretion of the deputy. Nothing the deputy considers to be a weapon shall be permitted in the interview rooms by civilians.

G. Interviews of Sarpy County Personnel:

1. The wand may be utilized on Sarpy County Personnel at the discretion of the interviewing deputy.

2. It shall be the discretion of the deputy conducting the interview whether the interviewee is permitted to wear his or her weapon in the interview room.

3. Should the interviewee elect to keep his or her weapon, with the permission of the interviewing deputy, the interviewing deputy shall be armed.

H. Interviews of Inmates:

1. If it is necessary to conduct an interview of an inmate outside of the Sarpy County Jail, the non-secure Sarpy County Sheriff's Office interview rooms may be utilized.

2. Prior to the inmate exiting the secure facility, it shall be the responsibility of the interviewing deputy to adhere to the following:

a) A deputy requesting to interview an inmate shall obtain permission from his or her division commander. If the division commander is unavailable, a command officer may grant permission. It shall then be the command officer's responsibility to notify a jail command officer, as well as obtain approval from the Sheriff, Chief Deputy, or Administration Commander.

b) If an outside agency is requesting the use of a Sheriff's Office non-secure interview rooms to speak with an inmate, he or she shall contact a Sheriff's Office command officer. The command officer shall then notify a jail command officer, and obtain approval from the Sheriff, Chief Deputy or Administration Commander.

c) The inmate to be interviewed shall be secured with two (2) forms of authorized restraints, (see G-6300 Authorized Restraints) prior to exiting the secured facility.

d) Two (2) law enforcement officers, including at least one Sarpy County deputy, shall stay with the inmate at all times, while outside the secure facility. This shall also include while in the non-secure interview rooms.

e) Prior to entering the interview rooms, the inmate shall be wanded by the deputy conducting the interview.

I. Summoning Assistance:

1. Uniformed deputies shall use their portable radios to summon assistance, if needed.

2. Non-uniformed deputies shall use their portable radios or cell phones to summon assistance, if needed.